

Unofficial 20. Document

Recording Requested by:

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Emma Smith, Esq.
May, Potenza, Baran & Gillespie, P.C.
1850 N Central Ave, Suite 1600
Phoenix, Arizona 85004-4633

NOTICE OF TRUSTEE'S SALE

The following legally described trust property ("Trust Property") will be sold, pursuant to the power of sale under the Deed of Trust recorded on December 4, 2024 at Recorder No. 2024-0645498 in the Official Records of Maricopa County, Arizona ("Deed of Trust"), in the Official Records of Maricopa County, Arizona.

NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL AT PUBLIC AUCTION TO THE HIGHEST BIDDER AT THE TIME, DATE, AND PLACE IDENTIFIED BELOW.

The Trust Property is legally described as follows:

SEE LEGAL DESCRIPTION ATTACHED HERETO AS "EXHIBIT A"

Street address(es) or identifiable location of the Trust Property:

114 W. Adams, C-103, Phoenix, Arizona 85004

Tax Assessor Parcel Number: 112-21-585

Sale Date:	November 3, 2026
Sale Time:	10:00 AM MST
Sale Location:	At the office of May, Potenza, Baran & Gillespie 1850 N. Central Ave., Suite 1600 Phoenix, Arizona 85004

Original Principal Balance: \$500,000.00

Name and address of the Beneficiary:

Black Mountain Investment Company LLC
8325 W. Happy Valley Road, Suite 220
Peoria, Arizona 85383

Name and address of the Trustor:

Jacobo Family Holdings, LLC
 139 E. Encanto Drive
 Tempe, Arizona 85281

Name, address and telephone number of Trustee:

Emma Smith, Trustee
 May, Potenza, Baran & Gillespie, P.C.
 1850 N Central Ave, Suite 1600
 Phoenix, Arizona 85004-4633
 602-252-1900

Manner of Trustee Qualification: Member of State Bar of Arizona in accordance with A.R.S. § 33-803(A)(2).

Name of Trustee's regulator: State Bar of Arizona

Said sale, is made on an "as is" condition, but without covenant or warranty, express or implied, regarding title, possession or encumbrances, to pay the remaining principal sum of the note secured by said Deed of Trust, which includes interest thereon as provided in said note, advances, if any under the terms of said Deed of Trust, interest on advances, if any, fees, charges and expenses of the Trustee and of the trusts created by said Deed of Trust. Said sale will be made for cash, cashier's check/cash equivalent (in lawful money of the United States), payable in accordance with A.R.S. §33-811. All sale inquiries may be made via email to Emma Smith at esmith@maypotenza.com, Kim Worley at kworley@maypotenza.com, or by phone at (602) 252-1900.

The undersigned Trustee disclaims any liability for any incorrectness of the street address and other common designations, if any, shown herein.

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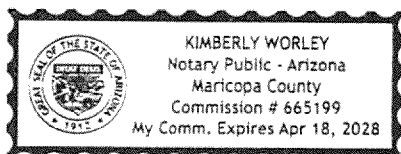
The beneficiary under the aforementioned Deed of Trust has accelerated the Agreement secured thereby and declared the entire unpaid principal balance, as well as any and all other amounts due in connection with said Agreement and/or Deed of Trust, immediately due and payable.

MAY, POTENZA, BARAN & GILLESPIE, P.C.

By: Emma Smith
Emma Smith, Trustee

STATE OF ARIZONA)
) ss.
County of Maricopa)

This instrument was acknowledged and executed before me this 3rd day of August, 2026, by Emma Smith, Trustee.



[Signature]
Notary Public

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This firm is not a Debt Collector as that term is defined pursuant to the Fair Debt Collection Practices Act ("Act") within this jurisdiction (*See Mansour vs. Cal-Western Reconveyance Corp.*, 618 F.Supp.2d 1178 (D. Ariz. 2009)). Should a subsequent determination be made that this firm is a Debt Collector as that term is defined within the Act, then you are notified that any information obtained will be used for the purpose of collecting a debt. Please be advised that if your personal liability for this debt has been modified or extinguished by a discharge in bankruptcy, this communication is provided solely in reference to the foreclosure on the deed of trust remaining on the subject property and is not an attempt to collect the discharged personal obligation. The notifications provided herein do not limit or detract from the effect of foreclosure upon the subject property.

NOTICE: If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the deposit paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee or the Mortgagee's attorney.

All persons whose interest in the Trust Property is subordinate in priority to that of the Deed of Trust described herein are hereby advised that their interest may be subject to being terminated by the Trustee's Sale.

**EXHIBIT A
LEGAL DESCRIPTION**

APN/Parcel ID(s): 112-21-585

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE CITY OF PHOENIX, COUNTY OF MARICOPA, STATE OF ARIZONA AND IS DESCRIBED AS FOLLOWS:

Unit C-103, of ORPHEUM LOFTS, a condominium, according to the Declaration of Condominium recorded in Recording No. 20021080763 and First Amendment to said Declaration recorded in Recording No. 20030507320 and Amended and Restated Declaration recorded in Recording No. 20030960444 and First Amendment to Amended and Restated Declaration recorded in Recording No. 2005-1332566, all of official records and according to the Plat recorded in Book 609 of Maps, Page 30 and amended in Book 630 of Maps, Page 50 second amended Plat recorded in Book 642 of Maps, Page 6 and amended in Book 884 of Maps, Page 44, records of Maricopa County, Arizona;

Together with an undivided interest in and to the common elements as set forth in said declaration and designated on said Plat.

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